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| Case                                        | Title / Nature of Case                             |
|---------------------------------------------|----------------------------------------------------|
| 02:00 PM <b>LINE 1</b><br>19-CLJ-01281      | WAHR FINANCIAL GROUP, LLC VS. EDDY PALACIOS, ET AL |
| WAHR FINANCIAL GROUP, LLC,<br>EDDY PALACIOS | JOHN P KENOSIAN                                    |

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**Claim of Exemption**

**TENTATIVE RULING:**

Judgment debtor Eddy Palacios's claim of exemption is **GRANTED in part.**

On May 18, 2026, plaintiff Wahr Financial Group, LLC, filed a notice of opposition to Palacios's claim of exemption. Plaintiff argues that defendant's "monthly allocation of \$474.00 for phone/utilities; \$450.00 for medical/dental; \$493.00 for insurance; \$854.00 for transportation; and \$140.00 for entertainment costs seem excessive." Plaintiff further notes that Palacios "lists his spouse's income but has failed to add it to the total household income on section 2(e)." Plaintiff also questions why defendant's payroll deduction includes \$274.02 for health/dental/vision insurance and why Palacios has included \$450.00 for medical/dental payments in his monthly expenses.

The burden of proof is on the judgment debtor to demonstrate that the property to be levied on is exempt in whole or in part. (Code Civ. Proc., § 703.580.) Code of Civil Procedure, section 706.050 provides, in pertinent part, that garnishment of the wages of an employee is limited to the lesser of 20 percent of the disposable earnings of an individual judgment debtor for any workweek subject to levy (except for certain high earners). The term "disposable earnings" is defined as "the portion of an individual's earnings that remains after deducting all amounts required to be withheld by law." (Code Civ. Proc., § 706.011, subd. (a).) Further, "[e]xcept as provided in subdivision (c), the portion of the judgment debtor's earnings that the judgment debtor proves is necessary for the support of the judgment debtor or the judgment debtor's family supported in whole or in part by the judgment debtor is exempt from levy under this chapter." (*Id.*, § 706.051, subd. (b).)

Palacios has three children. Accordingly, the expenses for phone and utilities, transportation and related expenses, do not seem excessive. Moreover, the medical/dental expenses are identified in Judicial Council Form EJ-165 as "payments" which is distinguishable from payroll deductions. The entertainment expense, however, does appear high.

Plaintiff is correct in that Palacios has not included his wife's take-home pay in "total monthly income" in line 2.e. Had he included that amount, his income would be sufficient to

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cover his total monthly expenses before the Palacios' monthly consumer, student loan, and auto debts.

Accordingly, the court orders defendant's wages garnished in the amount of \$50/month.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with this ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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02:00 PM **LINE 2**

23-CIV-05709

MIKHAIL MAALLOULI VS. MATTHEW TODD FREDRICKSEN, ET AL

MIKHAIL MAALLOULI  
MATTHEW TODD FREDRICKSEN

NATALIE KORDNAIJ

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**Motion to be Relieved as Counsel**

**TENTATIVE RULING:**

The unopposed motion of Navid T. Nour to be relieved as counsel of record for plaintiff Mikhail Maalouli is **DENIED WITHOUT PREJUDICE**. The court's May 19, 2026 Order Shortening Time required counsel to serve the moving papers and the order on plaintiff by U.S. mail, return receipt requested, and by email and text message. To date, no proof of service has been filed.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

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